

Vijay Pal Singh v. Dakshinanchal Vidyut Vitran Nigam Ltd. and Others

Allahabad High Court · Division Bench · 29 March 2010 · 2010 SCC OnLine All 3985 · Writ - C No. 60986 of 2005 · **Writ petition allowed; theft assessment order dated 4.7.2005 quashed on condition that the petitioner pays 1.5 times (not three times) the applicable tariff**

HEADNOTE

Twin of SCJ-227 (Writ-C 60987 of 2005), decided the same day by the same Bench with identical reasoning, differing only in the impugned assessment date (here 4.7.2005). The three-times-tariff theft assessment under the (unamended) U.P. Electricity Supply Code, 2005 was held ultra vires Section 126(6) of the Electricity Act, 2003, which caps assessment at 1.5 times, the Act having overriding effect under Section 174 and the Code being subordinate legislation that cannot travel beyond it. On a theft detected on checking (4.5.2005), the assessment at three times under Clause 8.2(iv) r/w Annexure 6.3(c) was quashed and the petitioner directed to pay 1.5 times the applicable tariff instead.

HOLDING-UNITS

INTERPLAY · UP-2005::8.2

Code's three-times theft-assessment rate is ultra vires the Act's 1.5-times cap under s.126(6)

QUESTION

Can the Code prescribe a theft assessment at three times the applicable tariff when Section 126(6) of the Electricity Act, 2003 provides for assessment at one-and-a-half times?

HOLDING

No. Following the identical reasoning in the twin petition (Writ-C 60987 of 2005), the three-times rate in Clause 8.2(iv) r/w Annexure 6.3(c) was ultra vires Section 126(6), which caps the assessment at 1.5 times; the Act overrides by Section 174 and the Code cannot travel beyond it. The assessment (4.7.2005) was quashed with a direction that the petitioner pay only 1.5 times the tariff applicable on the date of checking (4.5.2005). ¶ (pp. 518-519)

LIMITING FACTS

Checking on 4.5.2005 (pre-amendment Code); theft detected (meter bypassed by cable); assessment at three times demanded; Clause 6.8(c)(iv)(a) of the Code itself stated the 1.5-times rate.

PRINCIPLE TAGS

uue-assessment-at-1.5x-tariff-not-thrice Section 126(6) fixes assessment at 1.5 times the tariff; a Code provision assessing theft/UUE at three times is ultra vires and cannot be enforced. ¶ (pp. 518-519)

supply-code-regulation-cannot-exceed-parent-act-s174-overriding The Supply Code is subordinate legislation framed under the Electricity Act; by s.174 the Act overrides and the Code cannot travel beyond the Act's assessment limits. ¶ (pp. 518-519)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — EFFECT OF THE COMMISSION'S FAILURE TO AMEND CLAUSE 8.1(B)(IV) TO MATCH THE 15.6.2007 AMENDMENT OF S.126(6)

Expressly left open; the petitioner's case was governed by the pre-amendment position (checking on 4.5.2005), so only 1.5 times was payable. ¶ (pp. 518-519)